

1APP Technologies Inc.

Sales Manager Employment Agreement

DRAFT FOR ONTARIO EMPLOYMENT-LAW REVIEW — NOT READY FOR SIGNATURE

This Employment Agreement is made between:

1APP Technologies Inc. (the “Company”) and **Rod Norville** (the “Employee”).

Effective date: The date on which the last of 1APP Technologies Inc. and Rod Norville signs this Agreement (the “Effective Date”).

Fixed-term end date: [Insert the date that is three calendar months after the Effective Date before the Company issues the fully executed copy.]

1. Position and reporting

The Company employs the Employee as **Sales Manager** with the following functional reporting structure:

- **Tony DeCarlo:** technical questions, implementation feasibility, client setup, security, access, fulfillment, and technical escalation.
- **Justin Roffey:** sales strategy, business development, recruiting, pricing within approved authority, pipeline management, commercial coaching, and business escalation.

Any decision that changes both commercial scope and technical delivery requires written approval from both Tony DeCarlo and Justin Roffey. Neither reporting path authorizes the Employee to exceed the written authority in this Agreement or Company policy.

The Employee will faithfully perform the duties in this Agreement, the attached schedules, and reasonable duties consistent with the position. The Employee has no authority to bind the Company, vary client terms, hire or dismiss personnel, incur expenses, or make commitments unless that authority is provided in writing.

2. Three-month fixed-term employment

Employment begins on the Effective Date, meaning the date on which both parties have signed and the last signature is applied. Employment ends on the Fixed-Term End Date, subject to any earlier termination provision approved by Ontario employment counsel.

The parties intend this as fixed-term employment, not an independent-contractor relationship. The term does not remove or reduce any right or minimum standard under applicable law.

There is no automatic renewal, continued employment, promotion, or compensation change. Before the Fixed-Term End Date, the parties may review results and negotiate a renewal or replacement agreement. Any continuation must be confirmed in a written agreement signed by the Company and Rod Norville.

3. Duties

The Employee's primary duties include:

1. Build, lead, coach, and manage the 1APP sales team.
2. Recruit suitable sales associates through lawful, approved methods.
3. Deliver and maintain 1APP sales onboarding, product training, certification, role-play, and ongoing coaching.
4. Ensure no associate sells independently before certification and approval.
5. Prospect, qualify, demonstrate, quote, follow up, negotiate, and close approved 1APP opportunities.
6. Ensure every lead, contact, opportunity, activity, next action, quote, and source is accurately recorded in 1APP.
7. Maintain accurate weekly forecasts and performance reports.
8. Enforce approved offers, pricing controls, claim restrictions, privacy, consent, and brand standards.
9. Submit complete sales-to-fulfillment handoffs before implementation begins.
10. Coordinate with implementation and customer-success owners so sales promises match deliverable scope.
11. Review calls, coach performance, address poor conduct, and escalate serious issues.
12. Protect client experience, retention, recurring revenue, and Company reputation.

The Employee will follow the 1APP Master SOP Manual, Sales Manager Training Manual, Certification and Scorecards, privacy/security rules, and written policies as amended from time to time, provided changes comply with applicable law and do not unlawfully reduce contractual entitlements.

4. Place and hours of work

- Primary work arrangement: [remote / office / hybrid].
- Primary location: [address].
- Normal schedule: [days and hours].
- The Employee must be reasonably available for scheduled sales meetings, training, coaching, and client calls.
- Travel or unusual hours require reasonable notice where practical.
- The parties will comply with applicable hours-of-work, rest, public-holiday, overtime, and exemption rules. The title "Sales Manager" alone does not determine exemption status.

5. Base salary

The Company will pay the Employee **\$5,000 CAD gross per month** through payroll and subject to statutory deductions, for a total scheduled base salary of **\$15,000 CAD over the three-month fixed term**, subject to lawful payroll timing, deductions, and any approved early-termination provision.

The Employee's **first base-salary payment is due October 1, 2026**. It will cover the period from the Effective Date through September 30, 2026 and will be lawfully prorated if that is less than a full semi-monthly pay period. After that initial payment, regular pay dates are the **1st and 15th of each month**. The scheduled full semi-monthly base payment is **\$2,500 CAD gross**, subject to lawful proration, deductions, vacation-pay treatment, and payroll adjustments. If a later scheduled date is not a banking or payroll business day, payment will be made on the Company's next lawful payroll business day.

6. Commission and incentive compensation

The Employee may earn commission under **Schedule A — Sales Manager Compensation and KPI Plan**, as approved and signed by both parties.

Commission is governed by the written schedule in effect for the applicable deal, subject to minimum employment standards. The Company will provide a calculation record with each commission payment. No manager or owner may change commission retroactively after it has been earned.

Beginning with the Employee's **first qualifying personally sourced and personally closed client**, the Employee earns a **one-time commission equal to 10% of the net collected setup fee** actually received and cleared by the Company during the Employee's Commission Eligibility Period under Schedule A. The setup-fee commission is earned as each approved setup-fee installment clears. It is not recurring, does not vest as a lifetime right, and does not apply to invoiced but uncollected amounts, HST, refunds, credits, chargebacks, reimbursed expenses, usage pass-through, or third-party costs.

Beginning with the Employee's **first qualifying personally sourced and personally closed paid-active client**, the Employee also earns **10% of net collected monthly recurring service revenue** received and cleared during the Employee's Commission Eligibility Period under Schedule A.

All setup-fee commission, recurring commission, and team override eligibility is employment-dependent and does not vest as a lifetime or post-employment right. Subject to applicable law, the **Commission Eligibility Period** ends on the Employee's last day of active employment, including any additional period during which commission eligibility must continue under Ontario employment-standards legislation. No new commission accrues on setup-fee or subscription revenue received after the Commission Eligibility Period. Amounts already earned before that period ends remain payable on the next applicable pay date after reconciliation.

The Employee also earns a **5% direct-team override** on net collected monthly recurring service revenue received and cleared during the Commission Eligibility Period from qualifying clients personally sourced and personally closed by an eligible sales associate whom the Employee directly recruited, as defined in Schedule A. The override does not apply to setup fees. Qualifying team clients count toward the Employee's production target under Section 9 and Schedule A, but do not create a 10% personal commission for the Employee. The override does not stack with the Employee's 10% personal-client recurring commission on the same client revenue.

For clarity, no commission is earned merely because a quote is sent, a client verbally agrees, an invoice is issued, or a trial starts. The one-time personal setup-fee commission is earned only after the approved setup-fee payment clears during the Commission Eligibility Period and the attribution, quote, handoff, and conduct requirements in Schedule A are satisfied. Personal recurring commission and the direct-team override are earned only after the **14-day trial** is complete, the client authorizes paid continuation, and the applicable recurring client payment clears during the Commission Eligibility Period. Earned commission and override amounts are paid on the **1st and 15th** under the reconciliation rules in Schedule A, subject to applicable law.

7. Vacation, holidays, and statutory benefits

The Employee is entitled to vacation time, vacation pay, public holidays, leaves, and other minimum standards required by Ontario law. Payroll will separately track and administer amounts as required, including any vacation-pay obligation that applies to commission earnings.

Any greater benefit offered by the Company will be recorded in writing.

8. Expenses and Company property

The Company will reimburse reasonable, pre-approved business expenses supported by receipts and submitted under Company policy.

The Company may provide equipment, accounts, brand assets, records, and access. All remain Company property and must be used only for authorized business. The Employee must return all property and access promptly on request or when employment ends.

9. Performance expectations

The Employee agrees to the first-term standards in Schedule A. Performance will be judged on both output and quality. The first-term production target is **20 qualifying Net-New Paid-Active Clients produced by Rod Norville and/or eligible sales associates whom Rod directly recruited and manages**. Each client may be counted once only. Owner sales and sales by people outside Rod's direct eligible team do not count unless approved in a written amendment before the sale is credited.

At approximately Day 45, the Company and Employee will conduct a formal target-fit review using actual quote-acceptance and trial-to-paid conversion data, including the underlying counts and denominators. They will review pipeline coverage, trial volume, sales capacity, fulfillment capacity, and client quality. The review confirms whether the 20-client target remains commercially reasonable; it does not automatically change the target. Any revised target must be recorded in a written amendment signed by the Company and Employee.

The Days 91–180 promotion-eligibility standards apply only if the parties sign a renewal or replacement agreement that expressly adopts them.

Targets are management expectations, not permission to use misleading claims, pressure tactics, hidden activity, unauthorized pricing, improper recruiting, privacy violations, or incomplete handoffs.

Failure to meet a target may result in coaching, a performance-improvement plan, changed responsibilities, loss of promotion eligibility, or other lawful action. It does not automatically determine legal cause for termination.

10. Sales and recruiting conduct

The Employee must not, and must ensure direct reports do not:

- Guarantee leads, revenue, rankings, savings, or results.
- Misstate that \$99/month applies to every client or automation package.
- Require a credit card to start the advertised 14-day free trial.
- Invent discounts, pricing, features, integrations, timelines, or contract terms.
- Describe themselves as an owner, partner, legal agent, or authorized signer unless formally appointed.
- Make earnings guarantees or misleading recruiting claims.
- Operate an unapproved multi-level recruiting structure.
- Handle passwords, payment credentials, or client data outside approved secure systems.
- Keep leads or client communication outside 1APP.

11. Confidentiality

During and after employment, the Employee will keep confidential all non-public Company and client information, including pricing logic, proposals, client data, workflows, templates, access information, sales records, financial data, product plans, training materials, and trade secrets.

Confidential information may be used only for authorized Company work. This clause does not prohibit lawful reporting, protected activity, or use of information that is public through no breach of this Agreement.

12. Privacy and security

The Employee must:

- Use named accounts and multi-factor authentication where available.
- Follow least-privilege access.

- Use approved systems for credentials and sensitive data.
- Report suspected privacy or security incidents immediately.
- Never copy Company or client data into unapproved personal accounts, devices, or tools.
- Return or securely delete information as directed when access ends.

13. Intellectual property

To the extent permitted by law, work product created by the Employee within the scope of employment or using Company confidential information or resources—including training, scripts, playbooks, reports, templates, workflows, and sales assets—belongs to the Company upon creation.

The Employee will disclose pre-existing materials expected to be used in the role in **Schedule B — Pre-Existing Intellectual Property**. Ownership of properly disclosed pre-existing material remains with its owner; any licence required by the Company must be separately stated in writing.

14. Conflicts, outside activities, and non-solicitation

The Employee must disclose any actual or potential conflict of interest and may not use Company time, leads, information, or opportunities for another business.

During employment, the Employee will not divert 1APP prospects, clients, recruits, or personnel to a competing or personal business.

Any post-employment non-solicitation restriction must be narrowly drafted and approved by Ontario counsel before this Agreement is signed. No non-competition restriction is intended unless counsel confirms it is lawful and appropriate.

15. Policies and changes

The Employee will comply with reasonable written Company policies. Policies do not override this Agreement or minimum legal standards. Material changes to compensation, authority, core duties, or the fixed term require a written amendment signed by both parties.

16. Expiry and termination of employment

ONTARIO COUNSEL MUST INSERT AND APPROVE THE TERMINATION CLAUSE BEFORE SIGNATURE.

The final clause must address:

- Expiry of the three-month fixed term and whether any notice or payment is required.
- Early termination during the fixed term.
- Resignation notice.
- Termination without cause.
- Statutory notice, termination pay, severance where applicable, benefits continuation, and vacation pay.
- The Commission Eligibility Period, treatment of commission during any legally required notice period, payment of amounts already earned, and cessation of future setup-fee, recurring, and override accrual after employment ends.
- Return of property and access.
- Lawful termination for wilful misconduct or other cause.

Nothing in the final Agreement may provide less than the minimum entitlements required by applicable employment standards legislation.

17. General

- Ontario law governs this Agreement.
- This Agreement and its signed schedules form the entire agreement regarding employment.
- Amendments must be in writing and signed by both parties.
- If a provision is unenforceable, the remainder continues to the extent legally permitted.
- Electronic signatures and counterparts are acceptable.
- The Employee acknowledges having had the opportunity to obtain independent legal advice.

18. Schedules

- **Schedule A:** Sales Manager Compensation and KPI Plan.
- **Schedule B:** Pre-Existing Intellectual Property, if any.
- **Schedule C:** Approved equipment, allowances, and benefits.

Signatures

1APP Technologies Inc.

Name: _____ Title: _____ Signature: _____
Date: _____

Employee

Name: _____ Signature: _____ Date: _____
